THE PARLIAMENTARY PROCEEDINGS (PROTECTION OF PUBLICATION) ACT, 1977

ARRANGEMENT OF SECTIONS

SECTIONS

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IndiaCode

THE PARLIAMENTARY PROCEEDINGS (PROTECTION OF PUBLICATION) ACT, 1977

ACT NO. 15 OF 1977

[18*th April*, 1977.]

An Act to protect the publication of reports of proceedings of Parliament.

BE it enacted by Parliament in the Twenty-eighth Year of the Republic of India as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called the Parliamentary Proceedings (Protection of Publication) Act, 1977.

(*2*) It extends to the whole of India except the State of Jammu and Kashmir*.

(*3*) It shall be deemed to have come into force on the 25th day of March, 1977.

2. Definition.—In this Act, "newspaper" means any printed periodical work containing public news or comments on public news, and includes a news agency supplying material for publication in a newspaper.

3. Publication of reports of Parliamentary proceedings privileged.—(*1*) Save as otherwise provided in sub-section (*2*), no person shall be liable to any proceedings, civil or criminal, in any court in respect of the publication in a newspaper of a substantially true report of any proceedings of either House of Parliament, unless the publication is proved to have been made with malice.

(*2*) Nothing in sub-section (*1*) shall be construed as protecting the publication of any matter, the publication of which is not for the public good.

4. Act also to apply to Parliamentary proceedings broadcast by wireless telegraphy.—This Act shall apply in relation to reports or matters broadcast by means of wireless telegraphy as part of any programme or service provided by means of a broadcasting station situate within the territories to which this Act extends as it applies in relation to reports or matters published in a newspaper.

*. *Vide* Notification No. S.O. 3912 (E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.